

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual District Status Certificate Showing No Separate Judgment

Filed: July 6, 2026 Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED

United States District Court for the Northern District of West Virginia

Proceeding: Clerk's certificate concerning entry of judgment documents.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

At the request of the United States Court of Appeals for the Fourth Circuit, the district clerk has examined the civil docket and entered papers concerning Count I. The Court issued an order on February 4, 2026 that expressly determined there was no just reason for delay and directed entry of final judgment under Federal Rule of Civil Procedure 54(b).

The clerk certifies that no separate judgment satisfying Federal Rule of Civil Procedure 58(a) was entered on February 4 or at any time through July 6, 2026. The February 4 order contains reasoning, findings, and the direction to enter judgment; it was not accompanied by a distinct judgment document. No later paper titled judgment or setting out the Count I disposition separately appears on this docket.

Docket Examination and Dates

The February 4 certification order was entered in the civil docket that same day and served through the district filing system. The docket contains no motion listed in Federal Rule of Appellate Procedure 4(a)(4), no later amendment of the certification order, and no separately entered Rule 58 judgment.

Counting from the day after February 4, the one-hundred-fiftieth day fell on Saturday, July 4, 2026. July 4 was also a federal legal holiday. Under the applicable computation rule, a period ending on a Saturday or legal holiday continues to the next day that is not a Saturday, Sunday, or legal holiday. Monday, July 6, 2026 is that next day.

This certificate reports docket facts and the calendar sequence so the court of appeals may apply Federal Rule of Appellate Procedure 4(a)(7) and Federal Rule of Civil Procedure 58(c)(2). It does not itself enter judgment, amend the February 4 order, decide when appellate time began, or express a view about the merits of Count I.

This certificate pertains only to Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED and does not report the status of any other civil action.

Certified Status

The clerk certifies the following as of July 6, 2026:

1. A supported Rule 54(b) certification order was entered February 4, 2026.
2. That order directed entry of a separate final judgment on Count I.
3. No separate Rule 58 judgment was entered during the following 150-day period.
4. The nominal 150th day was Saturday, July 4, 2026, a weekend and legal holiday.
5. The next business day was Monday, July 6, 2026.
6. No filing or order shown on the docket tolled, extended, reopened, or otherwise changed the relevant date calculation.

This certificate is supplied as an authenticated statement of the district docket. It should be read with the February 4 certification order, which finally disposed of Count I and expressly found no just reason for delay, while narrowed Count II remained pending. The certificate does not substitute for a separate judgment and does not adjudicate whether the 150-day backstop makes the February 4 decision treated as entered on July 6 for appellate timing.

Certified July 6, 2026.

Clerk, United States District Court Authorized clerk designation